

members should specify this in their schedule of specific commitments.⁴ Reservation of the ability to lease or own land to nationals is one such treatment; therefore, it should be listed in the schedule as a limitation on national treatment.⁵ This applies to services that the GATS covers.⁶

Some jurisdictions do not list foreign land ownership on their schedules, but restrict it for national security or similar interests.⁷ Such jurisdictions include **Australia and Finland** (national interest), **Chile** and **Greece** (border area), **Russia** (national security), and **Spain** (zones of interest to national defense and the military). Several other jurisdictions that also restrict ownership for national security purposes have entered restrictions on their GATS schedules. Such jurisdictions include **Argentina** and **Mexico** (border area), **Iran** (sensitive areas), **South Korea** (military bases and installation protection zones), **Taiwan** (lands within fortified and military areas and adjacent to the national frontiers), and **Turkey** (designated military zones).

There are other various restrictions on foreigners' land ownership. Figure 1 below shows in simplified format the surveyed jurisdictions that impose particular categories of restrictions. On page 4, a color-coded map sets forth which jurisdictions permit foreign acquisition, prohibit it, or impose restrictions. A Comparative Summary Table beginning on page 5 presents the essential findings of our study for each jurisdiction. Lastly, the textual surveys for each jurisdiction provide further detail.

⁴ Id. art. XX.

⁵ Julia Nielson & Daria Taglioni, *A Quick Guide to the GATS and Mode 4*, OECD, World Bank, IOM Seminar on Trade and Migration (Nov. 12-14, 2003), at 11, <https://perma.cc/B8XW-LNZ4>.

⁶ World Trade Organization, *The General Agreement on Trade in Services (GATS): Objectives, Coverage and Disciplines, Question 3*, <https://perma.cc/4J7Y-WAG7>. It states, "[t]he GATS applies in principle to all service sectors, with two exceptions."

⁷ See GATS art. XIV General Exceptions.